

Vindeshwari Parsad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 September 2018 · Writ-C No. 31976 of 2018 · **Writ disposed; Executive Engineer to decide a fresh clause 6.5 objection; coercive action stayed one month.**

HEADNOTE

A consumer disputing bill calculations may object before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The High Court will not examine the dues on merits; if a fresh objection is filed with a certified copy of the order, the Executive Engineer must decide it in accordance with law within the time fixed, and coercive recovery may be stayed for that period.

FACTUAL SUMMARY

Vindeshwari Parsad approached the Allahabad High Court against a recovery citation dated 8 August 2018 issued for non-payment of electricity dues. His grievance was that wrong calculations had been made in the bill. He had already represented to the Executive Engineer, but the citation issued without that representation being considered. He sought quashing of the citation on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection before Executive Engineer

HOLDING

Under clause 6.5 of the Electricity Supply Code, 2005 a consumer may object to the bill before the Executive Engineer. The writ was disposed of with the direction that if the petitioner files a fresh objection with a certified copy of the order, the Executive Engineer shall consider and decide it in accordance with law within one month; coercive action on the recovery citation dated 8.8.2018 shall remain stayed for that period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL CALCULATIONS AND OF THE RECOVERY CITATION DATED 8.8.2018

Not examined on merits; left to the Executive Engineer on a fresh clause 6.5 objection. ¶ 1